

[Balochistan High Court]

Judges: Hon'ble Justice Muhammad Najamuddin Mengal



Habib Shah S/O Gulab Khan And Another

versus

The State



Ark is generating your headnote... please wait

Criminal Bail Application No.215 of 2025 1

**JUDGMENT SHEET
IN THE HIGH COURT OF BALOCHISTAN QUETTA**

Criminal Bail Application No.215 of 2025

(CC#100107801608)

Habib Shah & another vs. The State

O R D E R

Date of hearing: 30.05.2025 Announced on 31.05.2025

Applicant (s) by: Mr. Waheed Ahmed Bangulzai, Advocate State by: Mr. Tariq Asad, Assistant Attorney General

Muhammad Najam-ud-Din Mengal, J:-This order disposes of Criminal Bail Application No.215 of 2025, whereby the applicants (accused) Habib Shah son of Gulab Khan and Dilawar son of Meer Afghan, are seeking bail after arrest in case

FIR No.16 of 2024 dated 1st October 2024, registered at Police Station FIA Cyber Reporting Centre Quetta, under Section 21 (d) & 22(a) (b) (d) of Prevention of Electronic Crimes Act, 2016 ("PECA") lodged on the complaint of Noor Ahmed son of Ubaidullah with the allegations that the applicants (accused) made nude videos of his minor son namely Abdul Razzaq and made it viral in the social media.

2. Pursuant to above FIR, the applicants (accused) were arrested and subjected to investigation and on completion thereof, they were remanded to judicial custody. It is suffice to mention here that in the earlier round, the applicants (accused) filed an application for grant of bail in the Court of learned Special Judge under the Prevention of the Electronic Crimes Act/Sessions Judge, Quetta ("trial Court"), which was dismissed, vide order dated 5th December 2024. Whereafter, they filed the bail application bearing No.658 of

Only for viewing purpose. Contact office for certified copy.

Criminal Bail Application No.215 of 2025 2

2024 before this Court was dismissed, vide order dated 20th December 2024. Subsequently, after recording of statements of some witnesses, the applicants (accused) again filed an application for grant of bail in the trial Court, which was dismissed, vide order dated 24th April 2025. Whereafter, instant application has been filed.

3. Heard the learned counsel and perused the available record. At bail stage, the Court has to form its opinion tentatively on the basis of available record and deeper appreciation of record/evidence would effect the merits of the case. Prima-facie it appears that the applicants (accused) have taken specific plea that neither they made nude videos of the minor son of the complainant nor shared any explicit video to spread obscenity in the society. The tentative assessment of the record further reveals that the complainant has been declared hostile in the trial Court as he did not identify the applicants (accused) in the Court. Admittedly, the innocence or guilt of applicants (accused) is yet to be determine, which can only be determined after recording full evidence, which would take some sufficient time till then the case of applicants (accused) falls within the ambit of further inquiry. Furthermore, it has also been observed that the prosecution has completed the investigation of the case by collecting all the material evidence, meaning thereby that there is no apprehension of record being tampered with by the applicants (accused), besides, the applicants (accused) are no more required for the purpose of investigation or probe.

4. It is well settled principle of law that when a case of further inquiry is made out, the concession of bail can be extended in

Only for viewing purpose. Contact office for certified copy.

Criminal Bail Application No.215 of 2025 3

favour of accused person, as a matter of right, this Court also cannot elaborate the shifting of evidence, but make a tentative assessment of material laid before this Court, at this stage an inquiry by this Court is permissible to seek answer to the question of involvement of applicant without going into the deeper

appreciation of evidence. Thus, the learned counsel for the applicants (accused) has succeeded in making out a case for grant of bail in favour of applicants (accused).

5. For the above reasons, the application is accepted. The applicants (accused) Habib Shah son of Gulab Khan and Dilawar son of Meer Afghan, are ordered to be released on bail subject to furnishing bail bonds in the sum of Rs.200,000/- (Rupees Two Hundred Thousand) each, with P.R. bonds of the like amount each, to the satisfaction of trial Court or Additional Registrar of this Court.

The observation made hereinabove are tentative in nature, and same shall not influence the merits of the case at the trial.

Announced in open Court JUDGE Quetta the 31st May 2025

Only for viewing purpose. Contact office for certified copy.